

Yogesh Kumar v. State of U.P.

Allahabad High Court · Division Bench · 27 September 2018 · Writ-C No. 32696 of 2018 · **Representation directed to be decided under Clause 4.4 and Annexure 4.2.**

HEADNOTE

On a writ seeking a new clinic connection and disposal of a pending representation, where the intending consumer was not the owner and alleged landlord obstruction, the Division Bench directed the Executive Engineer to decide the representation dated 4 September 2018 within two weeks, keeping in view Clause 4.4 and Annexure 4.2 of the U.P. Electricity Supply Code, 2005 (provisional connection to a non-owner occupant on indemnity bond and proof of occupancy). Police assistance was authorised if required. Entitlement on merits was not decided.

FACTUAL SUMMARY

Yogesh Kumar applied for a new electricity connection to run a clinic. He stated that he had completed the formalities and deposited the fees, but supply was withheld because of obstruction by his landlord, Smt. Kamlesh Kumar alias Kela Devi. A representation dated 4 September 2018 before the Executive Engineer remained undisposed. He sought mandamus for connection and for decision of that representation, invoking Clause 4.4 and Annexure 4.2 of the 2005 Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

non-owner occupant connection on indemnity bond

HOLDING

Without deciding entitlement, the Executive Engineer was directed to dispose of the intending consumer's pending representation for a new connection within two weeks, keeping in view Clause 4.4 of the U.P. Electricity Supply Code, 2005 and Annexure 4.2, which prescribe the procedure for a provisional connection to a non-owner occupant on execution of an indemnity bond and production of proof of occupancy (valid power of attorney, latest rent-paid receipt, or registered lease deed) where landlord consent cannot be obtained. Police assistance may be sought from the local SHO if required. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO A NEW CONNECTION ON OCCUPANCY PROOF AND AN INDEMNITY BOND

Left to the Executive Engineer to decide the pending representation in light of Clause 4.4 and Annexure 4.2. ¶ 1-2